



General Assembly

February Session, 2026

**Substitute Bill No. 5280**



**AN ACT CONCERNING A NONCHARGE FOR EMPLOYEES PAID  
BENEFITS THROUGH THE SHARED WORK PROGRAM DURING  
PERIODS OF HIGH UNEMPLOYMENT.**

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (c) of section 31-225a of the 2026 supplement to  
2 the general statutes is repealed and the following is substituted in lieu  
3 thereof (*Effective October 1, 2026*):

4 (c) (1) (A) Any week for which the employer has compensated the  
5 claimant in the form of wages in lieu of notice, dismissal payments or  
6 any similar payment for loss of wages shall be considered a week of  
7 employment for the purpose of determining employer chargeability.

8 (B) No benefits shall be charged to any employer who paid wages of  
9 five hundred dollars or less to the claimant in his or her base period.

10 (C) No dependency allowance paid to a claimant shall be charged to  
11 any employer.

12 (D) In the event of a natural disaster declared by the President of the  
13 United States, no benefits paid on the basis of total or partial  
14 unemployment that is the result of physical damage to a place of  
15 employment caused by severe weather conditions including, but not  
16 limited to, hurricanes, snow storms, ice storms or flooding, or fire except  
17 where caused by the employer, shall be charged to any employer.

18 (E) If the administrator finds that (i) an individual's most recent  
19 separation from a base period employer occurred under conditions that  
20 would result in disqualification by reason of subdivision (2), (6) or (9) of  
21 subsection (a) of section 31-236, or (ii) an individual was discharged for  
22 violating an employer's drug testing policy, provided the policy has  
23 been adopted and applied consistent with sections 31-51t to 31-51aa,  
24 inclusive, section 14-261b and any applicable federal law, no benefits  
25 paid thereafter to such individual with respect to any week of  
26 unemployment that is based upon wages paid by such employer with  
27 respect to employment prior to such separation shall be charged to such  
28 employer's account, provided such employer shall have filed a notice  
29 with the administrator within the time allowed for appeal in section 31-  
30 241.

31 (F) No base period employer's account shall be charged with respect  
32 to benefits paid to a claimant if such employer continues to employ such  
33 claimant at the time the employer's account would otherwise have been  
34 charged to the same extent that he or she employed him or her during  
35 the individual's base period, provided the employer shall notify the  
36 administrator within the time allowed for appeal in section 31-241.

37 (G) If a claimant has failed to accept suitable employment under the  
38 provisions of subdivision (1) of subsection (a) of section 31-236 and the  
39 disqualification has been imposed, the account of the employer who  
40 makes an offer of employment to a claimant who was a former  
41 employee shall not be charged with any benefit payments made to such  
42 claimant after such initial offer of reemployment until such time as such  
43 claimant resumes employment with such employer, provided such  
44 employer shall make application therefor in a form acceptable to the  
45 administrator. The administrator shall notify such employer whether or  
46 not his or her application is granted. Any decision of the administrator  
47 denying suspension of charges as herein provided may be appealed  
48 within the time allowed for appeal in section 31-241.

49 (H) Fifty per cent of benefits paid to a claimant under the federal-state  
50 extended duration unemployment benefits program established by the

51 federal Employment Security Act shall be charged to the experience  
52 accounts of the claimant's base period employers in the same manner as  
53 the regular benefits paid for such benefit year.

54 (I) No base period employer's account shall be charged with respect  
55 to benefits paid to a claimant who voluntarily left suitable work with  
56 such employer (i) to care for a seriously ill spouse, parent or child, or (ii)  
57 due to the discontinuance of the transportation used by the claimant to  
58 get to and from work, as provided in subparagraphs (A)(ii) and (A)(iii)  
59 of subdivision (2) of subsection (a) of section 31-236.

60 (J) No base period employer's account shall be charged with respect  
61 to benefits paid to a claimant who has been discharged or suspended  
62 because the claimant has been disqualified from performing the work  
63 for which he or she was hired due to the loss of such claimant's operator  
64 license as a result of a drug or alcohol test or testing program conducted  
65 in accordance with section 14-44k, 14-227a or 14-227b while the claimant  
66 was off duty.

67 (K) No base period employer's account shall be charged with respect  
68 to benefits paid to a claimant whose separation from employment is  
69 attributable to the return of an individual who was absent from work  
70 due to a bona fide leave taken pursuant to sections 31-49f to 31-49t,  
71 inclusive, or 31-51kk to 31-51qq, inclusive.

72 (L) On and after January 1, 2027, no base period employer's account  
73 shall be charged with respect to benefits paid to a claimant through the  
74 voluntary shared work unemployment compensation program,  
75 established pursuant to section 31-274j, if a claim for benefits is filed in  
76 a week in which the state is in an extended benefit period or high  
77 unemployment period, pursuant to sections 31-232b to 31-232g,  
78 inclusive. Such noncharge shall continue until the United States  
79 Secretary of Labor has notified the Labor Commissioner that such  
80 extended benefit period or high unemployment period has been  
81 triggered off.

82 (2) All benefits paid that are not charged to any employer shall be

83 pooled.

84 (3) The noncharging provisions of this chapter, except subparagraphs  
85 (D), (F) and (K) of subdivision (1) of this subsection, shall not apply to  
86 reimbursing employers.

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| This act shall take effect as follows and shall amend the following sections: |  |  |
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| Section 1 | October 1, 2026 | 31-225a(c) |
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***Statement of Legislative Commissioners:***

Subparagraph (L) was moved into Subdivision (1) for proper form.

***LAB***      *Joint Favorable Subst. -LCO*